TX

THE TEXAS BEHAVIOR & DISCIPLINE DEFENSE KIT

A Comprehensive Framework for
Special Education Advocacy

Organized, Strategic Tools to Help You Prepare, Respond,
and Protect Your Child Before, During, and After Behavior Incidents

IDEA • TEC Chapter 37 • HB 6 • HB 121 • HB 785

For educational advocacy purposes only. This document does not constitute legal advice.

IMPORTANT DISCLAIMER

*This document is designed for **educational advocacy purposes only** and does not constitute legal advice. The information contained herein is based on publicly available federal and Texas state statutes, administrative codes, and published research as of the date of publication.*

*This kit **cannot and does not promise guaranteed outcomes**. It is impossible to guarantee that a suspension will be overturned, that a Manifestation Determination Review (MDR) will result in a favorable finding, or that a district will comply perfectly with a Behavior Intervention Plan (BIP) audit.*

*The strategies and templates provided are designed to help parents and caregivers **systematically prepare** for administrative meetings and document their child's educational experience.*

***This documentation does not replace the counsel of a licensed attorney.** If you believe your child's rights have been violated, you are strongly encouraged to consult with a special education attorney or licensed advocate in the State of Texas.*

© Texas Behavior & Discipline Defense Kit

TABLE OF CONTENTS

SECTION 1 The Systemic Context: Why This Kit Exists
SECTION 2 Prevalence & Trends: Discipline Disproportionality in Texas
SECTION 3 The Statutory Framework: What the Law Actually Dictates
SECTION 4 Legislative Shifts: House Bill 6 & House Bill 121
SECTION 5 DAEP Placement: Understanding the Risks
SECTION 6 Reintegration & Transition Planning
SECTION 7 Manifestation Determination Review (MDR) Best Practices
SECTION 8 Auditing the Behavior Intervention Plan (BIP)
SECTION 9 Restraint & Seclusion: Know Your Rights
SECTION 10 The Parent Experience: Breaking the Cycle of Alienation
SECTION 11 Home-School Alignment Strategies
SECTION 12 Your Deliverables: Tools for Immediate Action
SECTION 13 Authoritative Citations & Evidence Base

© Texas Behavior & Discipline Defense Kit

1 THE SYSTEMIC CONTEXT

Why This Kit Exists

When a student diagnosed with a disability is involved in a behavioral incident within a Texas public school, the resulting disciplinary actions extend far beyond the immediate moment of correction. The consequences ripple outward systematically—threatening the student's educational placement, their psychological well-being, and their long-term academic trajectory.

For families navigating this bureaucratic labyrinth, the stakes are exceptionally high:

- Suspensions accumulating to **more than ten days** trigger critical federal procedural safeguards under IDEA.
- Districts may propose removing the student to a **Disciplinary Alternative Education Program (DAEP)**—a highly restrictive, often punitive environment.
- Behavioral escalation frequently leads to **physical restraint and seclusion**—inherently traumatic for neurodivergent children.
- Caregivers face **Manifestation Determination Reviews (MDRs)**—structurally intimidating proceedings governed by strict statutory timelines.

> ***The Core Problem:*** *Caregivers frequently enter these rooms feeling unprepared, unheard, and legally overwhelmed by a panel of district professionals. This kit shifts the caregiver from a passive recipient of school policy to an* ***active, data-driven auditor of school compliance****.*

This framework anchors your defense in **procedural law rather than emotional reaction**, ensuring that your child's statutory rights are aggressively protected before minor behavioral incidents escalate into permanent educational displacement.

© Texas Behavior & Discipline Defense Kit

2 PREVALENCE & TRENDS

Discipline Disproportionality in Texas

Texas public schools disproportionately discipline students with disabilities compared to their general education peers. Students diagnosed with emotional and behavioral disorders, ADHD, Autism Spectrum Disorder, and related neurodevelopmental conditions are exceptionally vulnerable to repeated exclusionary discipline.

Root Causes of Disproportionality

- General educators **misinterpret disability-related behaviors** as willful defiance or malicious non-compliance.
- Neurological deficits in executive functioning, sensory processing, or emotional regulation are viewed through a **purely punitive lens**.
- A pervasive **lack of training** in proactive de-escalation, trauma-informed care, and functional behavior analysis.
- The default response becomes **reactive, exclusionary discipline** rather than proactive, individualized behavioral planning.

Federal Oversight: Significant Disproportionality

Under **34 CFR §300.646**, the Texas Education Agency (TEA) annually evaluates school districts to determine if significant disproportionality exists regarding disciplinary actions taken against students of specific racial or ethnic groups who also receive special education services. Districts identified as demonstrating significant disproportionality for three consecutive years must reserve **15% of their IDEA Part B funds** for Comprehensive Coordinated Early Intervening Services (CCEIS).

The Phenomenon of "Shadow Discipline"

Shadow discipline occurs when students are marked present in the official attendance system but are **informally removed from instructional environments**—such as being sent to sit in the front office for hours—thereby obscuring the true rate of exclusionary discipline and circumventing IDEA procedural safeguards. Even well-resourced districts have documented this practice.

★ ***Key Takeaway:*** *Because of extreme district-to-district variability, caregivers cannot assume that campus administrators possess a thorough understanding of the specialized procedural requirements mandated by Texas and federal law.* ***You must possess this expertise directly.***

© Texas Behavior & Discipline Defense Kit

3 THE STATUTORY FRAMEWORK

What the Law Actually Dictates

The legal landscape governing special education discipline in Texas is intricate, having undergone massive transformations during the 87th and 89th Texas Legislative Sessions. A robust defense framework requires a microscopic understanding of these statutes.

The Manifestation Determination Review (MDR) Threshold

Under IDEA and **TEC Section 37.004**, the MDR is the most critical procedural safeguard against discriminatory discipline. The law establishes a hard boundary:

> *If a school proposes a disciplinary action that constitutes a **"change of placement"**, the district **must** conduct an MDR within **10 school days** of that decision.*

What Constitutes a Change of Placement?

- Removal for **more than 10 consecutive school days**.
- A **series of short-term removals** that constitute a pattern totaling more than **10 cumulative days** within a single school year.

The Two Critical MDR Questions

During the MDR, the ARD committee is **statutorily required** to answer two specific legal questions:

QUESTION 1: Was the conduct in question caused by, or did it have a direct and substantial relationship to, the child's disability?

QUESTION 2: Was the conduct in question the direct result of the district's failure to implement the IEP?

If YES to Either Question:

- The behavior is legally classified as a **manifestation of the disability**.
- The student **cannot be subjected to standard disciplinary removal** and must return to prior placement.
- The district **must** conduct an FBA and implement or revise a BIP.

© Texas Behavior & Discipline Defense Kit

If NO to Both Questions:

- The school may proceed with standard disciplinary consequences.
- However, the student **does not lose their right to special education**.
- The district must continue providing **FAPE**—even in a DAEP setting.

Special Circumstances Exception

Regardless of manifestation, a student may be placed in a **45-day Interim Alternative Educational Setting (IAES)** for:

- Possession of a **weapon** at school or a school function.
- Knowing possession, use, or sale of **illegal drugs** at school.
- Infliction of **serious bodily injury** upon another person at school.

© Texas Behavior & Discipline Defense Kit

4 LEGISLATIVE SHIFTS

House Bill 6 & House Bill 121 (89th Texas Legislature)

The 89th Texas Legislature introduced sweeping changes that fundamentally expanded the disciplinary authority of campus personnel while adding specific nuances for students with disabilities.

House Bill 6: Key Changes

- Teachers may now remove a student for a **single instance** of behavior deemed unruly, disruptive, or abusive.
- The student may **not be returned** to that teacher's classroom without the teacher's **explicit written consent**.
- ISS is now **unlimited in duration** (previously capped), with administrative review every 10 days.
- A new **Virtual Expulsion Program (VEP)** permits remote instruction when DAEP/JJAEP is unavailable.

> ***IDEA Protection:*** *Under IDEA, prolonged ISS* ***can constitute an illegal change of placement*** *if the student is denied access to the general curriculum, specialized instruction, or participation with nondisabled peers. Track every ISS day carefully.*

House Bill 121: Threat Assessment Protections

When a threat assessment is initiated against a student receiving special education services, the team is now **legally required** to include a professional with specific knowledge of the student's disability and its manifestations. This may include:

- A special education teacher
- A licensed behavior analyst
- A licensed clinical social worker
- A specialist in school psychology

Pre-2025 vs. Post-2025 Discipline Standards

Mechanism	Pre-2025 Standard	Post-2025 Standard (HB 6 & HB 121)
Teacher Removal	Required repeated, documented interference.	Permitted for a single instance of disruptive or unruly behavior.

© Texas Behavior & Discipline Defense Kit

Mechanism	Pre-2025 Standard	Post-2025 Standard (HB 6 & HB 121)
In-School Suspension	Capped at limits defined by local policy (often 3 days).	Unlimited duration; administrative review every 10 days.
Return to Class	Administrator discretion following a conference.	Requires teacher's written consent or a formal Return to Class Plan.
Threat Assessment	General multidisciplinary membership.	Must include a specialist with knowledge of the student's exact disability.
DAEP Placement	Discretionary for many offenses.	Mandatory for assault/harassment of school employee or volunteer.

© Texas Behavior & Discipline Defense Kit

5 DAEP PLACEMENT

Understanding the Risks of Disciplinary Alternative Education

A Disciplinary Alternative Education Program (DAEP) is a highly restrictive, separate campus designed to house students who have violated the student code of conduct. An overwhelming majority of DAEP placements across Texas are **discretionary**, meaning localized administrative tolerance levels directly dictate the removal of students with behavioral disabilities.

The Reality of DAEP Environments

- Heavily regimented, militaristic, and inherently punitive environments.
- Severe disruptions to established routines, therapeutic relationships, and specialized services.
- Instruction often involves generalized, computer-based learning modules—not specialized direct instruction.
- Essential related services (OT, speech therapy, behavioral counseling) frequently interrupted or abandoned.
- Academic momentum vanishes; carefully constructed behavioral goals regress entirely.

Federal Mandate: *Despite the reality of DAEP environments, the district is* ***legally required*** *to continue providing FAPE. This means the student must continue to participate in the general education curriculum and make progress toward IEP goals—even in a DAEP.*

© Texas Behavior & Discipline Defense Kit

6 REINTEGRATION & TRANSITION

Securing a Safe Return from DAEP

Under **TEC Section 37.023**, administrators are legally required to develop a personalized transition plan for any student returning from a DAEP or JJAEP. This plan must be coordinated **within five instructional days** of the student's release.

The Transition Plan Must Include:

- Assistance and recommendations from **school counselors**.
- Input from **licensed clinical social workers**.
- Guidance from **campus behavior coordinators**.
- Collaboration with **classroom teachers**.
- A formal meeting with the **caregiver** to discuss behavioral management, academic assistance, and mental health resources.

✎ ***Action Step:*** *Many districts fail to operationalize transition plans effectively. Demand the rigid enforcement of TEC 37.023 in writing, forcing the district to allocate resources for a safe, highly supported reentry.*

© Texas Behavior & Discipline Defense Kit

7 MDR BEST PRACTICES

Winning the Manifestation Determination Review

The prevailing administrative strategy during an MDR is to narrowly define the student's disability and assert that the behavioral infraction was a willful choice unassociated with the diagnosis. To counter this, you must build an **unassailable clinical foundation**.

Recommended Protocol

Step 1: Begin by establishing a unanimous consensus on the precise nature of the child's disability using objective, third-party diagnostic criteria (e.g., DSM-5).

Step 2: Introduce documented evidence matching the disciplinary infraction directly to the accepted manifestations of the disorder.

Step 3: Force data-driven answers onto the official record using the operational questions below.

Operational MDR Questions

Use these exact phrases to force the committee to rely on data rather than subjective frustration:

MDR SCRIPT — Question 1

"What specific, empirical data supports the team's assertion that this behavior is entirely unrelated to the documented neurological deficits of the student?"

MDR SCRIPT — Question 2

"Can the team demonstrate, through data collection logs, that the antecedent interventions outlined in the current BIP were implemented with complete fidelity immediately prior to the incident?"

MDR SCRIPT — Question 3

"How does the current BIP adequately reflect the environmental triggers present during the behavioral escalation?"

© Texas Behavior & Discipline Defense Kit

CRITICAL: *Never sign disciplinary waivers or placement changes on the spot. Doing so may forfeit vital due process rights and waive the "stay put" provision unnecessarily. You have the right to request time to review all documentation.*

© Texas Behavior & Discipline Defense Kit

8 AUDITING THE BIP

Holding the District Accountable for Behavioral Supports

A Behavior Intervention Plan is not a disciplinary document—it is an **instructional roadmap** designed to reduce challenging behavior by modifying the environment and teaching functionally equivalent replacement skills. Research demonstrates that educators frequently fail to implement BIPs with fidelity.

HB 785 mandates that schools review a student's BIP **at least annually**, and more frequently if there is a change in circumstances (increased disciplinary actions, unexcused absences, or unauthorized departures).

BIP Quality Audit Checklist

Component	Deficient Practice ✘	Evidence-Based Standard ✔
Operational Definition	"Student is aggressive, defiant, and non-compliant."	"Student engages in physical aggression (hitting, kicking) within 10 sec of transitioning between tasks."
Hypothesized Function	"To gain control or manipulate the teacher."	"To escape high-demand academic tasks in unstructured, high-noise environments."
Antecedent Interventions	"Remind the student of classroom rules."	"Provide a visual schedule and 2-min verbal primer prior to transitions; allow preferential seating."
Replacement Behavior	"Student will sit quietly and do work."	"Student taught to use a break card to request a 3-min sensory modulation period."
Reinforcement Strategy	"Loss of recess or office referral."	"Continuous reinforcement: token delivered immediately upon successful use of break card."
Data Collection	No mechanism specified; anecdotal only.	Daily interval checklist managed by teacher, reviewed weekly.

When the district says they lack resources: *Federal law prohibits LEAs from opting out of behavioral supports due to administrative or financial constraints. If the school cannot implement the plan, they must acquire personnel, contract externally, or fund a private therapeutic placement.*

© Texas Behavior & Discipline Defense Kit

9 RESTRAINT & SECLUSION

Know Your Rights Under Texas Law

The application of physical restraint in Texas schools is governed by **TEC Section 37.0021** and **TAC Title 19, Section 89.1053**. These techniques are highly restricted and subject to intense reporting requirements.

When Is Restraint Legally Permitted?

Restraint—the use of physical force or a mechanical device to significantly restrict free movement—is **only** permitted in an absolute emergency: when the student's behavior poses an **imminent threat of serious physical harm** to themselves or others, or serious property destruction.

- Must **never** be used as a response to non-compliance, verbal escalation, or administrative convenience.
- Must be **discontinued immediately** when the emergency ceases.
- Must **never deprive** the student of basic human necessities.

> ***SECLUSION IS BANNED.*** *Confining a student in a locked room, box, or closet from which they cannot exit is* ***explicitly prohibited*** *in Texas public schools. The only exception: an extreme emergency where the student possesses a weapon, while awaiting law enforcement.*

Mandatory Notification Requirements

- **Same-Day Verbal Notification:** The campus must make a good-faith effort to notify the parent on the day of the restraint.
- **Written Notification:** A detailed written report must be sent within **one school day**.
- **Record Keeping:** Documentation must be filed in the student's special education eligibility folder.

What the Written Report Must Contain:

- Name of the individual administering the hold.
- Exact start and end times of the restraint.
- Location where the restraint occurred.
- Nature/type of restraint used.
- Activity preceding the incident.

© Texas Behavior & Discipline Defense Kit

- Specific behavior that prompted the hold.
- **De-escalation tactics attempted prior to physical force.**

Pattern Recognition: *If your child is restrained multiple times a week for similar triggers, the data unequivocally demonstrates that the school's behavioral interventions are fundamentally failing—legally necessitating a completely revised FBA and BIP.*

© Texas Behavior & Discipline Defense Kit

10 THE PARENT EXPERIENCE

Breaking the Cycle of Systemic Alienation

Caregivers routinely report being subjected to dismissive administrative rhetoric—being told to "just talk to him" after a suspension, or discovering that a BIP exists on paper but no one actually follows it. At MDRs, parents find themselves across from six to eight district professionals, creating an immediate power imbalance designed to force compliance.

This kit exists because **traditional, descriptive legal advice fails in acute moments**. Parents do not need textbook definitions of IDEA—they need **tactical, operational scripts** that act as cognitive prosthetics during the most stressful meetings of their child's educational life.

EXAMPLE SCRIPT — Requesting BIP Fidelity Data

"Please provide the interval data collection sheets demonstrating the BIP was implemented prior to the escalation. I am requesting this documentation be entered into the official record of this meeting."

EXAMPLE SCRIPT — Halting a Premature Decision

"I am not prepared to consent to this placement change today. I am invoking stay-put protections under 34 CFR §300.518 and request that all proposed changes be provided to me in Prior Written Notice so I may review them with my advocate or legal counsel."

© Texas Behavior & Discipline Defense Kit

11 HOME-SCHOOL ALIGNMENT

Bridging the Gap Between Home and School

Understanding After-School Restraint Collapse

A phenomenon highly prevalent among neurodivergent students occurs when a child exhausts massive cognitive and emotional energy masking their disability and navigating overwhelming sensory environments during the school day. Upon returning home to safety, their neurological capacity for self-regulation is entirely depleted, resulting in severe meltdowns, defiance, or emotional withdrawal.

The “Soft Landing” Protocol

- Abandon traditional post-school interrogations ("How was your day?").
- Provide **immediate sensory regulation** upon arrival home.
- Offer **protein-rich snacks and hydration**.
- Allow **uninterrupted decompression time** before any demands.
- Do NOT enforce chore demands or behavioral sticker charts during this window.

Evidence-Based Home Interventions

- Establish **highly predictable routines** utilizing visual schedules.
- Implement **token economies** tied to high-value intrinsic rewards.
- Use **calm, minimalist de-escalation language** during crises.
- If a sensory tool works at home (bouncy band, noise-canceling headphones, weighted lap pad), **formally present that data** to the ARD committee to co-design classroom interventions.

★ ***Consistency is key.*** *When home and school strategies are aligned, you stabilize the child’s nervous system, reduce disciplinary incidents, and create a unified front of support.*

© Texas Behavior & Discipline Defense Kit

12 YOUR DELIVERABLES

Tools for Immediate Action

The following tools synthesize every legal standard, research finding, and practical strategy in this kit into **immediately deployable deliverables**. Print them. Bring them to meetings. Use them today.

Deliverable	Purpose	Legal Basis
MDR Preparation & Execution Script	Exact phrasing to halt premature actions, define disability, and force data-driven answers.	34 CFR §300.530(e); IDEA procedural safeguards
BIP Quality Audit Checklist	Cross-reference the school's BIP against evidence-based standards.	PBIS TATE Tool; HB 785 annual review mandates
Restraint & Seclusion Incident Log	Track date, duration, triggers, and de-escalation methods to expose patterns.	TEC §37.0021; TAC §89.1053
Behavior Incident Documentation Workbook	Compile suspension notices, ISS durations, and referrals to track the 10-day threshold.	IDEA 10-day rule; HB 6 ISS parameters
Pre-Drafted Email Templates	Fill-in-the-blank letters for requesting FBA, missing documentation, or ARD meetings.	TEC §37.004; Prior Written Notice mandates
"What to Say" Meeting Deflection Cards	Pocket-sized phrases for when administrators rush proceedings or minimize behavior.	Best practices in advocacy negotiation
Home-School Alignment Tool	Worksheets for managing after-school collapse and sharing behavioral data with the school.	Clinical research on neurodivergent emotional regulation

© Texas Behavior & Discipline Defense Kit

13 AUTHORITATIVE CITATIONS

Evidence Base & Legal Authority

Every strategy in this kit is anchored in authoritative policy and peer-reviewed research. By referencing these sources, you borrow the authority of the state and the scientific community.

Texas State Statutes

- **TEC Chapter 37** — Sections 37.004 (Discipline of Students with Disabilities), 37.0021 (Restraint and Seclusion), 37.023 (DAEP Transition Plans).
- **TAC Title 19, §89.1053** — Emergency definitions, procedures, and reporting timelines for physical restraint.

Federal Mandates

- **Individuals with Disabilities Education Act (IDEA)** — Procedural safeguards, FAPE requirements, and stay-put provisions.
- **34 CFR §300.530** — Changes in placement, Manifestation Determinations, and disciplinary protections.
- **34 CFR §300.646** — Significant Disproportionality monitoring and CCEIS mandates.

Clinical & Behavioral Research

- **Journal of Positive Behavior Interventions** — BIP fidelity and implementation data.
- **National Center on PBIS** — Technical Adequacy Tool for Evaluation (TATE) standards.

Recent Legislation (87th & 89th Texas Sessions)

- **House Bill 6** — Teacher removal authority, unlimited ISS, Virtual Expulsion Programs.
- **House Bill 121** — Threat assessment team requirements for students with disabilities.
- **House Bill 785** — Annual BIP review mandates and change-of-circumstances triggers.

© Texas Behavior & Discipline Defense Kit

THE ADVOCATE IN THE ROOM

When a student's behavior is inextricably linked to their disability, exclusionary discipline does not correct the behavior. It traumatizes the student, severs their academic momentum, and denies them their legal right to a Free Appropriate Public Education.

This kit is your **trusted advocate** sitting next to you in every tough meeting—demanding data, enforcing legal boundaries, and ensuring the educational system treats your child not as a disciplinary problem to be removed, but as a **student requiring specialized, compassionate, and legally mandated support**.

> ***Replace anxiety with procedural expertise. Replace reactive panic with operational scripts. You are no longer alone in that room.***

© Texas Behavior & Discipline Defense Kit

PART 2

THE ACTION PACK

Print. Bring to Meetings. Fight.

TOOL A Restraint & Seclusion Incident Log

TOOL B Shadow Discipline & Removal Tracker

TOOL C 10-Day Cumulative Removal Counter

TOOL D Pre-Drafted Email Templates

TOOL E MDR Preparation Checklist

TOOL F "What to Say" Meeting Deflection Cards

Instructions: *Print these pages. Keep copies in a binder. Bring them to every ARD, MDR, and disciplinary meeting. Fill them out in real time or immediately after incidents. Your paper trail is your power.*

© Texas Behavior & Discipline Defense Kit

A RESTRAINT & SECLUSION INCIDENT LOG

Legal Basis: TEC §37.0021 • TAC §89.1053 • Complete one row per incident. Photocopy as needed.

Student Name: _____ School Year: _____

Campus: _____ Grade: _____

#	Date	Time Start/End	Trigger / Antecedent	Type of Restraint	Staff Involved	De-Escalation Attempted?	Parent Notified?
1							
2							
3							
4							
5							
6							
7							
8							
9							
10							
11							
12							

© Texas Behavior & Discipline Defense Kit

PATTERN NOTES *(If restrained 2+*

Recurring Trigger: _____

Recurring Time of Day: _____

Recurring Staff: _____

Action Requested: ■ Revised FBA ■ Revised BIP ■ ARD Meeting ■ File Complaint

© Texas Behavior & Discipline Defense Kit

B SHADOW DISCIPLINE & REMOVAL TRACKER

Track every removal—official or unofficial. "Shadow discipline" (sent to office, sent home early, "shortened day") counts toward the 10-day IDEA threshold even if the school does not report it.

Month: _____ **Year:** _____ **Student:** _____

KEY:	S = Suspended (OSS)	I = In-School Suspension	E = Sent Home Early	O = Office / Hallway / Removed from Class	R = Restrained

Monday	Tuesday	Wednesday	Thursday	Friday	Weekly Total	Hours Missed
Wk 1	Wk 1	Wk 1	Wk 1	Wk 1		
Wk 2	Wk 2	Wk 2	Wk 2	Wk 2		
Wk 3	Wk 3	Wk 3	Wk 3	Wk 3		
Wk 4	Wk 4	Wk 4	Wk 4	Wk 4		
Wk 5	Wk 5	Wk 5	Wk 5	Wk 5		

MONTHLY CUMULATIVE TALLY

Total OSS Days This Month: _____

Total ISS Days This Month: _____

Total Shadow Removals: _____

CUMULATIVE YTD: _____ / 10

© Texas Behavior & Discipline Defense Kit

■ ***TRIGGER ALERT:*** *When the cumulative total approaches* ***8 days****, send the pre-drafted email (Tool D, Template 3) requesting an emergency ARD to discuss behavioral supports BEFORE the 10-day threshold is crossed.*

© Texas Behavior & Discipline Defense Kit

C 10-DAY CUMULATIVE REMOVAL COUNTER

Legal Basis: IDEA "Change of Placement" Rule • 34 CFR §300.536 • This is your master log across the entire school year. One row per removal event.

Student: _____ School Year: 20____ / 20____

#	Date(s) of Removal	Type (OSS/ISS/ DAEP/Other)	# of School Days Missed	Cumulative Total	Official Notice Received? (Y/N)	Notes / Reason Given
1						
2						
3						
4						
5						
6						
7						
8						
9						
10						
11						
12						
13						
14						
15						

■ WHEN CUMULATIVE TOTAL REACHES 10 DAYS:

© Texas Behavior & Discipline Defense Kit

- The district **must** conduct a Manifestation Determination Review (MDR) within 10 school days.
- You have the right to participate as a full member of the ARD committee.
- "Stay Put" protections apply—the child remains in current placement until the MDR is complete.
- Send Template 3 (Tool D) immediately. Do NOT wait for the district to contact you.

© Texas Behavior & Discipline Defense Kit

D PRE-DRAFTED EMAIL TEMPLATES

Fill in the blanks. Send via email (creates a timestamp). Always CC yourself and keep a copy.

TEMPLATE 1 — Request for Functional Behavioral Assessment (FBA)

To: [Principal Name], [Special Education Director]
CC: [Your personal email]
Subject: Formal Written Request for Functional Behavioral Assessment — [Student Name]

Dear [Principal / SpEd Director],

I am the parent/legal guardian of **[Student Full Name]**, who currently receives special education services at **[Campus Name]** under the eligibility category of **[Eligibility]**.

Due to **[recent behavioral incident / pattern of suspensions / restraint incidents]**, I am formally requesting that the district conduct a comprehensive **Functional Behavioral Assessment (FBA)** in accordance with **34 CFR §300.530(f)** and **TEC §37.004**.

I am requesting this assessment to identify the **function of the behavior**, the environmental antecedents contributing to escalation, and to inform the development or revision of an appropriate **Behavior Intervention Plan (BIP)**.

Please provide me with **Prior Written Notice** regarding your response to this request within **15 school days** as required by law. I also request a copy of the Procedural Safeguards Notice.

Respectfully,
[Your Name]
[Date]
[Phone Number]

TEMPLATE 2 — Demand for Missing Restraint Documentation

© Texas Behavior & Discipline Defense Kit

To: [Principal Name], [Special Education Director]
CC: [Your personal email]
Subject: Request for Restraint Incident Documentation — [Student Name]

Dear [Principal / SpEd Director],

On **[Date of Incident]**, my child **[Student Name]** was physically restrained at **[Campus Name]**. As of today, I have **not received the written incident report** required under **TEC §37.0021** and **TAC §89.1053**.

Texas law requires that written notification be provided to the parent within **one school day** of the restraint. The report must include: the name of the staff member who administered the hold, the start and end times, the specific behavior prompting the restraint, and the **de-escalation methods attempted prior to physical intervention**.

I am formally requesting the complete incident report be provided to me within **3 business days** of this email. I also request that this documentation be filed in my child's special education eligibility folder for review at the next ARD meeting.

If additional restraint incidents have occurred that I have not been notified about, please provide documentation for all such incidents for the current school year.

Respectfully,
[Your Name]
[Date]

© Texas Behavior & Discipline Defense Kit

TEMPLATE 3 — Request for Emergency ARD Meeting (Approaching 10-Day Threshold)

To: [Principal Name], [Special Education Director], [ARD Facilitator]
CC: [Your personal email]
Subject: URGENT — Request for ARD Meeting Re: Cumulative Disciplinary Removals — [Student Name]

Dear ARD Committee,

I am writing to formally request an **emergency ARD meeting** for my child **[Student Name]**. According to my records, my child has been removed from the educational setting for a total of **[Number] school days** this school year through suspensions, ISS placements, and/or informal removals.

As we are approaching the **10-day cumulative threshold** that triggers "change of placement" protections under **34 CFR §300.536**, I am requesting that the ARD committee convene **within 10 school days** to:

• Review and revise the current **Behavior Intervention Plan (BIP)**
• Assess whether the current IEP adequately addresses behavioral needs
• Discuss additional supports, services, or placement modifications
• Ensure compliance with **HB 785** annual BIP review mandates

Please confirm the date and time of this meeting at your earliest convenience. I will be accompanied by **[advocate name / support person, if applicable]**.

Respectfully,
[Your Name]
[Date]

TEMPLATE 4 — Formal Objection to DAEP Placement / Invoking Stay-Put

© Texas Behavior & Discipline Defense Kit

To: [Principal], [SpEd Director], [Superintendent's Office]
CC: [Your personal email]
Subject: Formal Objection to Proposed DAEP Placement — [Student Name]

Dear [District Personnel],

I am writing to formally object to the proposed placement of my child **[Student Name]** into a **Disciplinary Alternative Education Program (DAEP)**.

I am requesting that the district conduct a **Manifestation Determination Review (MDR)** prior to any change of placement, as required under **34 CFR §300.530**. Until this review is completed, I am invoking **"stay put" protections under 34 CFR §300.518**, which require that my child remain in their current educational placement.

I am also requesting that the district provide me with **Prior Written Notice** detailing: (1) the proposed action, (2) the reasons for the proposal, (3) the data relied upon, and (4) a description of other options considered and why they were rejected.

I do **not consent** to this placement change at this time and reserve all rights under IDEA.

Respectfully,
[Your Name]
[Date]

© Texas Behavior & Discipline Defense Kit

E MDR PREPARATION CHECKLIST

Complete this checklist BEFORE your Manifestation Determination Review. Bring it to the meeting.

Meeting Date: _____ **Meeting Time:** _____ **Location:** _____

BEFORE THE MEETING — Documents to Gather

- ■ Copy of the current **IEP** (check the date — is it current?)
- ■ Copy of the current **Behavior Intervention Plan (BIP)**
- ■ Copy of the most recent **Functional Behavioral Assessment (FBA)**
- ■ All **suspension notices, ISS records, and office referrals** for this school year
- ■ My **Restraint & Seclusion Log** (Tool A) and **Shadow Discipline Tracker** (Tool B)
- ■ My **10-Day Cumulative Removal Counter** (Tool C) — **current total:** _____ **days**
- ■ Any **independent evaluations, medical records, or clinical reports** from outside providers
- ■ Copy of the child's **diagnostic criteria** (DSM-5 definition of their disability)
- ■ Name of my **support person / advocate** attending with me: _____

DURING THE MEETING — Questions to Ask (On the Record)

- ■ "What is the **precise clinical definition** of my child's disability that the team is using today?"
- ■ "What **specific, empirical data** supports the assertion that this behavior is unrelated to the disability?"
- ■ "Can the team provide the **data collection logs** showing the BIP was implemented with fidelity prior to this incident?"
- ■ "Were the **antecedent interventions** in the BIP actually in place at the time of the behavioral escalation?"
- ■ "What **de-escalation strategies** were attempted before the disciplinary action was taken?"
- ■ "Has the district provided the student with **all services and supports** listed in the IEP this semester?"

PROTECT YOURSELF — Critical Reminders

- ■ **Do NOT sign anything** at the meeting that changes placement. Request time to review.
- ■ If you disagree, **state your disagreement on the record** and request Prior Written Notice.

© Texas Behavior & Discipline Defense Kit

- You may **request a recess** at any time to consult with your advocate or process information.
- You may **audio record** the meeting in Texas (one-party consent state) — announce it at the start.
- If the team votes against you, **write "I disagree"** on the ARD document before signing.
- Request a **copy of the completed MDR form** and all documents reviewed during the meeting.

© Texas Behavior & Discipline Defense Kit

F "WHAT TO SAY" DEFLECTION CARDS

Cut along the dotted lines. Keep these in your pocket or binder. Use them when you feel pressured, overwhelmed, or outnumbered in a meeting.

WHEN: They pressure you to sign a placement change

"I am not prepared to consent to this placement change today. I am invoking stay-put protections under 34 CFR §300.518 and request all proposed changes in Prior Written Notice."

IDEA Stay-Put Provision

WHEN: They say the behavior is not related to the disability

"What specific, empirical data supports the team's assertion that this behavior is entirely unrelated to the documented neurological deficits of the student?"

34 CFR §300.530(e)

WHEN: They claim the BIP was being followed

"Can the team produce the interval data collection sheets demonstrating the BIP was implemented with complete fidelity immediately prior to this incident?"

PBIS Fidelity Standards / HB 785

WHEN: They try to rush the meeting or skip your questions

"I would like to request a brief recess to review the information being presented. I also want to confirm that my questions and concerns are being documented in the official meeting record."

ARD Best Practices / Parent Rights

WHEN: They minimize the restraint or say it was necessary

"I am requesting the written incident report required under TEC §37.0021 including the specific de-escalation methods attempted prior to physical intervention. Was this filed in the eligibility folder?"

TEC §37.0021 / TAC §89.1053

WHEN: They say they don't have the resources for the BIP

"Federal law prohibits the district from declining to implement an IEP or BIP due to staffing or financial constraints. What is the district's plan to acquire the necessary resources or contract externally?"

IDEA FAPE Mandate / 34 CFR §300.17

WHEN: They say ISS "doesn't count" toward the 10 days

"If my child was denied access to the general curriculum, specialized instruction, or participation with nondisabled peers during ISS, that constitutes a removal under IDEA. I am tracking these days cumulatively."

IDEA Change of Placement / HB 6

WHEN: You are emotionally overwhelmed and need to stop

"I need to take a moment. I want to be a productive member of this team, but I need a 10-minute break before we continue. I do not want to make any decisions I haven't had time to consider."

Your Right as an ARD Member

© Texas Behavior & Discipline Defense Kit

✂ *Cut along card borders. Laminate for durability. Keep in your meeting binder at all times.*

© Texas Behavior & Discipline Defense Kit

YOU ARE PREPARED.

YOU ARE NOT ALONE.

The Texas Behavior & Discipline Defense Kit

Organized, Strategic Tools to Help You Prepare, Respond,
and Protect Your Child Before, During, and After Behavior Incidents

IDEA • TEC Chapter 37 • HB 6 • HB 121 • HB 785

For educational advocacy purposes only. This document does not constitute legal advice.

© Texas Behavior & Discipline Defense Kit